

TENTATIVE RULING

Case: **Davis Medical Venture LLC v. Gary**
Case No. CV2025-2253

Hearing Date: **May 5, 2026** **Department Eleven** **9:00 a.m.**

Motion for relief from waiver:

Defendants Donna Gary and Dielji, Inc.'s motion for relief from waiver of objections is **GRANTED**. (Code Civ. Proc., §§ 2030.290, 2031.300.) Defendants have shown that they served responses in substantial compliance with the applicable discovery statutes. (Code Civ. Proc., §§ 2030.290, subd. (a)(1), 2031.300, subd. (a)(1); *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 782; Finnerty decl., ¶ 8, Exhibit A-D.) Further, defendants have established that their failure to serve timely responses was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., §§ 2030.290, subd. (a)(2), 2031.300, subd. (a)(2); see also *City of Fresno v. Superior Court* (1988) 205 Cal.App.3d 1459, 1467; *Baratti v. Baratti* (1952) 109 Cal.App.2d 917, 921; Finnerty decl., ¶¶ 5-7; Gary decl., ¶¶ 3-4; Finnerty decl. ISO reply, ¶¶ 5-7.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rule of Court 3.1312 or further notice is required.

Discovery motions:

On April 22, 2026, pursuant to this Court's order, plaintiff Davis Medical Venture LLC's counsel filed a declaration, identifying the discovery requests remaining at issue if the Court granted defendants' relief from waiver. (Murtha decl. [filed April 22, 2026], ¶ 14.) As the Court granted defendants' motion for relief from waiver, it must consider these remaining issues. (*Ibid.*) However, the Court finds that plaintiff did not adequately meet and confer as to the outstanding requests before it filed these motions. (Code Civ. Proc., §§ 2016.040, subd. (a), 2030.300, subd. (b)(1), 2031.310, subd. (b)(2); Murtha decls. [filed February 5, 2026], ¶¶ 11-17, Exhibits F & G.)

Therefore, on the Court's own motion, plaintiff's six motions to compel further response to discovery requests (filed February 5, 2026) are **CONTINUED** to **June 30, 2026**, at 9:00 a.m. in Department Eleven. The parties are **DIRECTED** to further meet and confer regarding the issues identified in the Ms. Murtha's declaration – in person, by videoconference, or by telephone – by May 26, 2026. (Code Civ. Proc., § 2016.040, subd. (a); Murtha decl. [filed April 22, 2026], ¶ 14.)

By June 9, 2026, plaintiff **MUST** file: (1) a new meet and confer declaration regarding the parties' meet and confer efforts and any remaining issues for the Court's determination; and (2) a separate statement regarding discovery still at issue. (See Cal. Rules of Court, rule 3.1345.)

By June 23, 2026, defendants may file a responsive meet and confer declaration and separate statement.

If there are no remaining issues, plaintiff is **DIRECTED** to request that the June 30, 2026, hearing be vacated.

TENTATIVE RULING

Case: **FTNT Holding, LLC v. Khan**
Case No. CV2025-1747

Hearing Date: **May 5, 2026** **Department Eleven** **9:00 a.m.**

On the Court's own motion, defendant and cross-complainant Zahra Khan's motion for leave to file proposed second amended cross-complaint is **CONTINUED** to **May 14, 2026**, at 9:00 a.m. in Department Eleven.